

**Reprint
as at 5 August 2013**



Industry Training Act 1992

Public Act 1992 No 55
Date of assent 19 June 1992
Commencement see section 1(2)

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Changes authorised by subpart 2 of Part 2 of the Legislation Act 2012 have been made in this reprint.

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This Act is administered by the Ministry of Education.

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An Act to—

- (a) provide for the recognition and funding of organisations (to be known as industry training organisations) setting skill standards for, and administering the delivery of, industry-based training; and
- (b) encourage and improve industry-based training; and
- (c) repeal the Technicians Training Act 1967 and the Apprenticeship Act 1983, and provide for the continued administration of contracts under those Acts; and
- (d) provide for the protection of people receiving industry-based training under certain training arrangements in the nature of apprenticeship, or under contracts under the Technicians Training Act 1967 or the Apprenticeship Act 1983; and
- (e) provide for other related matters

1 Short Title and commencement

- (1) This Act may be cited as the Industry Training Act 1992.
- (2) Except as provided in section 20, this Act shall come into force on 1 July 1992.

Part 1
Preliminary

2 Interpretation

In this Act, unless the context otherwise requires,—

apprenticeship contract means a contract of apprenticeship, registered under section 13 of the Apprenticeship Act 1983, that was in force immediately before 1 July 1992

Commission means the Tertiary Education Commission established by section 159C of the Education Act 1989

employment agreement has the same meaning as in the Employment Relations Act 2000

funding approval means a decision made by the Commission under section 159YA of the Education Act 1989 to fund (in whole or in part) some or all of the activities described in section 10(2) in relation to which funding is sought

industry means 2 or more enterprises that use—

- (a) similar inputs and methods of production to produce similar products; or
 - (b) similar methods to provide similar services;—
- and, in relation to any industry training organisation, means the industry in respect of which the organisation is for the time being recognised

industry training means systematic training, provided for people employed in an industry (or 2 or more industries)—

- (a) by or on behalf of employers in the industry (or industries); or
- (b) for the benefit of employers and employees in the industry (or industries),—

in skills characteristic of, or likely to be valuable to, people engaged in the industry (or industries)

industry training organisation means a body corporate for the time being recognised under section 5 or section 8(1)

Minister means the Minister of the Crown who, under the authority of any warrant or with the authority of the Prime Minister, is for the time being responsible for the administration of this Act

plan means a plan in relation to which funding approval has been given

proposed plan means a proposed plan in relation to which an organisation is seeking funding for activities in section 10(2) under section 159YA of the Education Act 1989

qualifications authority means the New Zealand Qualifications Authority established by section 248(1) of the Education Act 1989

recognise means recognise for the purposes of this Act

satisfied means satisfied on reasonable grounds

similar includes the same, and related

skills includes methods and knowledge

skill standard,—

- (a) means a specification of skills, and levels of performance in those skills; and
- (b) in relation to any industry training (or proposed industry training), means a specification of some or all of the skills in which training is (or is proposed to be) received, and the levels of performance in those skills intended to be attained by people receiving the training

technician's contract means a contract (within the meaning of section 2 of the Technicians Training Act 1967) that was in force immediately before 1 July 1992

technicians' determination means a determination under section 4 of the Technicians Training Act 1967 (whether or not at any time amended or consolidated under that Act) that was in force immediately before 1 July 1992

training board means an industry training board established under the Vocational Training Act 1982.

Section 2 **agency**: repealed, on 1 January 2003, by section 4(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 2 **applicant organisation**: repealed, on 1 January 2003, by section 4(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 2 **apprenticeship contract**: amended (with effect on 1 July 1992), on 25 June 1993, by section 2 of the Industry Training Amendment Act 1993 (1993 No 52).

Section 2 **Board**: repealed, on 1 January 2003, by section 4(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 2 **Commission**: inserted, on 1 January 2003, by section 4(2) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 2 **employment agreement**: inserted, on 2 October 2000, by section 240 of the Employment Relations Act 2000 (2000 No 24).

Section 2 **employment contract**: repealed, on 2 October 2000 by section 240 of the Employment Relations Act 2000 (2000 No 24).

Section 2 **funding agreement**: repealed, on 1 January 2004, by section 4(3) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 2 **funding approval**: inserted, on 1 January 2008, by section 49(2) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

Section 2 **plan**: inserted, on 1 January 2008, by section 49(2) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

Section 2 **profile**: repealed, on 1 January 2008, by section 49(1) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

Section 2 **proposed plan**: inserted, on 1 January 2008, by section 49(2) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

Section 2 **statement of tertiary education priorities**: repealed, on 1 January 2008, by section 49(1) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

3 Training contracts to have effect as employment agreements

Any contract between an employer and an employee that relates to the employee's receiving, or provides for the employee to receive, industry training (whether provided by the employer or by some other person) is for all purposes deemed to be part of the employee's employment agreement.

Section 3: substituted, on 2 October 2000, by section 240 of the Employment Relations Act 2000 (2000 No 24).

4 Act binds the Crown

This Act binds the Crown.

Part 2

Recognition of industry training organisations and funding of training activities

5 Minister may recognise certain organisations

- (1) Subject to section 6, the Minister may, by notice in the *Gazette* specifying the name of the body and the industry in respect of which it is recognised, recognise in respect of any industry any body corporate that applies to the Minister to be recognised in respect of that industry.
- (2) The Minister may, at the request of an industry training organisation, at any time before that industry training organisation's recognition expires, amend the description of the industry in respect of which that industry training organisation is recognised, by publishing a notice in the *Gazette* specifying the name of the industry training organisation and the amended description of the industry in respect of which it is recognised.

Section 5 heading: amended, on 1 January 2004, by section 5(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 5(1): amended, on 1 January 2004, by section 5(2) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 5(2): added, on 1 January 2003, by section 5(3) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 5(2): amended, on 1 January 2004, by section 5(4) of the Industry Training Amendment Act 2002 (2002 No 51).

6 Minister must be satisfied of organisation's abilities

The Minister shall not recognise an applicant organisation in respect of any industry unless satisfied, having consulted the qualifications authority and having had regard to the matters specified in section 7, that the organisation (either alone, or as one of 2 or more recognised organisations acting in respect of training relevant to all their industries) can effectively and efficiently—

- (a) set for the industry in respect of which the organisation wishes to be recognised (or that industry and the other industry or industries concerned) skill standards that the qualifications authority is likely to be prepared to register; and
- (b) develop arrangements for the delivery of industry training that will enable trainees to attain those standards, including arrangements (being arrangements likely to be acceptable to the qualifications authority) for—
 - (i) the monitoring of the training so as to ensure that it enables trainees to attain those standards; and
 - (ii) the assessing of trainees and of the extent to which they have in fact attained those standards; and
- (c) provide leadership within the industry on matters relating to skill and training needs by—
 - (i) identifying current and future skill needs; and
 - (ii) developing strategic training plans to assist the industry to meet those needs; and
 - (iii) promoting training that will meet those needs to employers and employees; and
- (d) develop arrangements for the collective representation of employees in the governance of the organisation.

Section 6 heading: amended, on 1 January 2004, by section 6(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 6: amended, on 1 January 2004, by section 6(2) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 6(b)(ii): amended, on 1 January 2003, by section 6(3) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 6(c): added, on 1 January 2003, by section 6(3) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 6(d): added, on 1 January 2003, by section 6(3) of the Industry Training Amendment Act 2002 (2002 No 51).

7 Matters to which Minister must have regard before recognising organisations

The matters to which the Minister must have regard before recognising an applicant organisation are—

- (a) the extent to which the organisation represents and is funded by employers of people engaged in the industry in respect of which the organisation wishes to be recognised; and
- (b) the organisation's—
 - (i) knowledge of; and
 - (ii) likely responsiveness to the level of demand within that industry for industry training that will enable trainees to attain,—
the skills, and the levels of performance in those skills, that that industry needs; and
- (c) the organisation's resources of skill and knowledge generally; and
- (d) the organisation's intentions in relation to the involvement of people employed in that industry in the doing of the things referred to in section 6(a) to (c); and
- (e) the desirability of avoiding unnecessary duplication of effort in the doing of those things; and
- (f) the extent to which the organisation intends that the industry training whose delivery is to be arranged should extend through a range of levels in the framework for national qualifications in post-school education and training developed by the qualifications authority under section 253(1)(c) of the Education Act 1989; and

- (g) whether the organisation has performed satisfactorily at other times when the organisation has been recognised or provisionally recognised; and
- (h) whether the organisation has taken reasonable steps to avoid fragmentation and to provide a clear and representative industry focus for each organisation; and
- (i) *[Repealed]*

Section 7 heading: amended, on 1 January 2004, by section 7(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 7: amended, on 1 January 2004, by section 7(2) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 7(d): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 7(g): substituted, on 1 January 2003, by section 7(3) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 7(h): added, on 1 January 2003, by section 7(3) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 7(i): repealed, on 1 January 2004, by section 7(4) of the Industry Training Amendment Act 2002 (2002 No 51).

8 Provisional recognition

- (1) Notwithstanding section 6, if not satisfied that an organisation seeking recognition meets all the requirements of that section, but satisfied that—
 - (a) by taking certain actions the organisation will be able to meet all those requirements; and
 - (b) in all the circumstances, it is appropriate that in the meantime the Commission should be able to fund the organisation,—the Minister may, by written notice to the organisation, provisionally recognise it.
- (2) The notice shall specify—
 - (a) the actions the organisation should take to meet the requirements of section 6; and
 - (b) the period (not exceeding 3 years) from the date of the notice for which provisional recognition has been granted.

Section 8(1): amended, on 1 January 2004, by section 8(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 8(1): amended, on 1 January 2004, by section 8(3) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 8(1)(b): amended, on 1 January 2004, by section 8(2) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 8(1)(b): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

9 Expiry and cancellation of recognition

- (1) The recognition of an industry training organisation under section 5 expires 5 years after it is granted.
- (2) The recognition of an industry training organisation under section 8(1) expires when—
 - (a) the period for which it was granted expires; or
 - (b) the organisation is recognised under section 5.
- (3) The Minister may cancel the recognition of an industry training organisation under this Act (with immediate effect)—
 - (a) if it asks the Minister to cancel its recognition; or
 - (ab) if the circumstances in subsection (3A) apply; or
 - (b) if the Minister is satisfied that the organisation no longer exists.
- (3A) The circumstances referred to in subsection (3)(ab) are that—
 - (a) the Minister has issued a notice to the organisation, in accordance with subsection (3B), stating that he or she considers that the organisation's performance is inadequate because it is not meeting 1 or more of the requirements under section 6(a) to (d); and
 - (b) the period of time specified in the notice within which the organisation must improve its performance has elapsed; and
 - (c) the Minister is satisfied that the organisation's performance continues to be inadequate for the reason specified in the notice.
- (3B) A notice under subsection (3A) must—
 - (a) be in writing; and
 - (b) specify—
 - (i) the areas in which the Minister considers the organisation's performance to be inadequate, with reference to the requirements under section 6(a) to (d); and
 - (ii) what actions that the organisation should take to improve its performance; and

- (iii) the period, which must be a reasonable period, within which the organisation must improve its performance; and
 - (iv) the fact that the Minister may cancel the organisation's recognition, under subsection (3)(ab), if it fails to improve its performance within that period.
- (4) Nothing in this section prevents an organisation whose recognition has expired under subsection (1) or subsection (2), or been cancelled under subsection (3)(a) or (ab), from seeking recognition in accordance with section 5 and being recognised in accordance with that section or section 8(1).

Section 9(3): amended, on 1 January 2004, by section 9(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3)(a): amended, on 1 January 2004, by section 9(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3)(ab): inserted, on 1 January 2003, by section 9(2) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3)(b): amended, on 1 January 2004, by section 9(1) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3A): inserted, on 1 January 2003, by section 9(3) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3A)(a): amended, on 1 January 2004, by section 9(5) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3A)(a): amended, on 1 January 2004, by section 9(6) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3A)(c): amended, on 1 January 2004, by section 9(5) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3B): inserted, on 1 January 2003, by section 9(3) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3B)(b)(i): amended, on 1 January 2004, by section 9(7) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(3B)(b)(iv): amended, on 1 January 2004, by section 9(7) of the Industry Training Amendment Act 2002 (2002 No 51).

Section 9(4): substituted, on 1 January 2003, by section 9(4) of the Industry Training Amendment Act 2002 (2002 No 51).

10 Industry training organisation's proposed plan must identify activities for which it seeks funding

- (1) An industry training organisation that seeks funding under a funding mechanism that provides for funding via plans (as in-

dictated by the Minister under section 159L(2)(b) of the Education Act 1989) must—

- (a) prepare a proposed plan in accordance with section 159X of the Education Act 1989; and
- (b) specify in the proposed plan the activities set out in subsection (2) in relation to which funding is sought; and
- (c) submit the proposed plan for consideration of funding approval under section 159YA of that Act.

(2) The activities are—

- (a) setting skill standards for the industry (or industries); and
- (b) developing arrangements for the delivery (not being delivery by the organisation itself or organisations themselves) of industry training intended to enable trainees to attain those standards, including arrangements for—
 - (i) monitoring the training to ensure that it enables trainees to attain those standards; and
 - (ii) assessing trainees and the extent to which they have in fact attained those standards; and
- (c) making arrangements for the delivery (not being delivery by the organisation itself or organisations themselves) of industry training that will enable trainees to attain skill standards previously set by the organisation (or organisations) and registered by the qualifications authority, including arrangements accepted by the qualifications authority for—
 - (i) monitoring the training to ensure that it enables trainees to attain those standards; and
 - (ii) assessing trainees and the extent to which they have in fact attained those standards; and
- (d) making arrangements for the delivery (not being delivery by the organisation itself or organisations themselves) of industry training under apprenticeship contracts, technicians' contracts, or programmes of industry training recognised under section 18(a), that will enable trainees to attain skill standards likely to be registered by the qualifications authority, including arrangements likely to be accepted by the qualifications authority for—

- (i) monitoring the training to ensure that it enables trainees to attain the levels of skill intended; and
 - (ii) assessing trainees and the extent to which they have in fact attained those levels of skill; and
 - (e) providing leadership within the industry on matters relating to skill and training needs by—
 - (i) identifying current and future skill needs; and
 - (ii) developing strategic training plans to assist the industry to meet those needs; and
 - (iii) promoting training that will meet those needs to employers and employees; and
 - (f) developing arrangements for the collective representation of employees in the governance of the organisation.
- (3) Every proposed plan of an industry training organisation, or combined proposed plan of 2 or more industry training organisations, must—
- (a) specify agreed levels of performance for the industry training organisation or organisations to which the proposed plan relates; and
 - (b) provide for the variation, suspension, and termination of funding if those levels of performance are not achieved.
- (4) Nothing in this section limits any other requirement as to the content of proposed plans that may be specified by the Commission under Part 13A of the Education Act 1989.

Section 10: substituted, on 1 January 2004, by section 11 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 10 heading: amended, on 1 January 2008, by section 50(1) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

Section 10(1): substituted, on 1 January 2008, by section 50(2) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

Section 10(3): amended, on 1 January 2008, by section 50(3) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

Section 10(3)(a): amended, on 1 January 2008, by section 50(3) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

Section 10(4): substituted, on 1 January 2008, by section 50(4) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

10A Power to fund if employer switches industry training organisation

The Commission may give funding approval to a proposed plan of an industry training organisation under which it seeks to manage the delivery of industry training to the employees of a particular employer who is not part of the industry specified in the *Gazette* notice published under section 5 relating to the industry training organisation, if—

- (a) that employer has applied to the Commission in writing for industry training to be managed by the industry training organisation; and
- (b) the Commission is satisfied that the employer's application should be granted because either—
 - (i) the industry training organisation that manages training for the employer's industry does not have the capacity to provide a satisfactory service to the employer; or
 - (ii) the employer faces significant administrative and compliance costs (but not taking into account the cost of any training levies) because its training needs are covered by more than 1 industry training organisation; and
- (c) the Commission is satisfied that the industry training organisation is capable of managing delivery of industry training that will enable the employees of the employer to attain the skill standards applicable in the industry to which the training relates.

Section 10A: inserted, on 1 January 2004, by section 11 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 10A: amended, on 1 January 2008, by section 51 of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

11 Matters to which Commission must have regard in determining whether to give funding approval to proposed plan

In determining whether to give an industry training organisation's proposed plan funding approval, the Commission must have regard to the following matters:

- (a) the amount of training to which it relates, and the likely number of trainees to be trained in accordance with it; and
- (b) the desirability of introducing into the organisation's industry (or the organisations' industries) skills (whether new skills or enhanced existing skills) likely to increase its (or their) international competitiveness; and
- (c) the desirability of extending industry training to industries, or areas of any industry (or industries), where industry training linked to nationally recognised qualifications has not traditionally been available; and
- (d) the desirability of extending industry training to people of a kind or description specified in the Commission's statement of intent as people to whom industry training linked to nationally recognised qualifications has not traditionally been available (whether within any industry or industries, or generally).

Section 11: substituted, on 1 January 2004, by section 12 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 11 heading: amended, on 1 January 2008, by section 52(1) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

Section 11: amended, on 1 January 2008, by section 52(2) of the Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106).

12 Commission may require industry training organisation to provide information

[Repealed]

Section 12: repealed, on 1 January 2004, by section 13 of the Industry Training Amendment Act 2002 (2002 No 51).

13 Additional functions of Commission

In addition to the functions given to the Commission by or under enactments other than this Act, the Commission has the following functions:

- (a) to promote the wide availability within industry of high quality industry training linked to nationally recognised qualifications;
- (b) to promote the availability of industry training linked to nationally recognised qualifications to people of a kind or description specified in the Commission's statement

- of intent as people to whom such training has not traditionally been available (whether within any industry or industries, or generally):
- (c) to administer and disburse public money appropriated by Parliament for the purpose of industry training:
 - (d) to promote, in accordance with its statement of intent, the protection of the interests of—
 - (i) people receiving training under apprenticeship contracts or technician's contracts; and
 - (ii) people receiving training under programmes of industry training recognised under section 18(a):
 - (e) to ensure that there are in place, and monitor and ensure the effectiveness of, systems to maintain at a satisfactory level the quality and effectiveness of industry training—
 - (i) received under apprenticeship contracts or technician's contracts; or
 - (ii) comprising or forming part of a programme of industry training recognised under section 18(a),—
(other than training in respect of which the qualifications authority has notified the Commission that it has registered skill standards and accepted arrangements for monitoring the delivery of the training and assessing trainees):
 - (f) to exercise the powers and perform the functions of the Commission under Part 5.

Section 13 heading: amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 13: amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 13(b): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 13(d): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 13(e): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 13(f): added, on 1 January 2003, by section 14 of the Industry Training Amendment Act 2002 (2002 No 51).

Part 3

Technicians Training Act 1967 and Apprenticeship Act 1983

14 Technicians Training Act 1967 and Apprenticeship Act 1983 repealed

- (1) The Technicians Training Act 1967 and the Apprenticeship Act 1983 are hereby repealed.
- (2) The enactments specified in Schedule 1 are hereby consequentially repealed.
- (3) The Orders in Council specified in Schedule 3 are hereby consequentially revoked.

15 Transitional

Notwithstanding section 14,—

- (a) every apprenticeship contract shall continue in existence until the day on which it is expressed to expire or an earlier day specified for the purpose under section 17(b):
- (b) every apprenticeship order shall continue in existence, and have effect according to its tenor, until every apprenticeship contract to which it applies has expired, and shall then expire:
- (c) every technician's contract shall continue in existence until determined according to law:
- (d) every technicians' determination shall continue in existence, and have effect according to its tenor, until every technician's contract to which it applies has expired, and shall then expire:
- (e) subject to section 16 of this Act and to paragraph (b) of this section and sections 80 to 252 of the Employment Relations Act 2000 apply to every technician's contract and apprenticeship contract as if it were an employment agreement within the meaning of that Act.

Section 15(e): substituted, on 2 October 2000 by section 240 of the Employment Relations Act 2000 (2000 No 24).

16 Certain repealed provisions deemed to form part of existing contracts

Notwithstanding section 14 of this Act, sections 14 to 19 and 51 of the Apprenticeship Act 1983 shall be deemed to form part of every apprenticeship contract; but as if every reference in sections 14 to 19 to a District Commissioner or local committee is a reference to the Commission.

Section 16: amended, on 3 December 2007, by section 445 of the Insolvency Act 2006 (2006 No 55).

Section 16: amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

17 Powers of Commission in relation to existing contracts

(1) The Commission may—

- (a) on the recommendation of—**
 - (i) an industry training organisation operating in the industry concerned; or**
 - (ii) a committee established by the Commission for the purpose,—**
by notice in the *Gazette* amend any technician's determination or apprenticeship order:
- (b) by written notice to the parties, specifying the reasons for doing so, set a reduced term for any apprenticeship contract:**
- (c) issue certificates for technician's contracts and apprenticeship contracts successfully completed.**

(2) Of its own motion the Commission may, on or after making any amendments to any apprenticeship order, make to any other apprenticeship order or orders any similar amendments that, in the Commission's opinion, are not likely to be controversial or have serious consequences.

Section 17 heading: amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 17(1): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 17(1)(a)(ii): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 17(2): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

18 Powers of Commission in relation to other training programmes

The Commission may—

- (a) recognise any programme of industry training (undertaken or to be undertaken pursuant to 1 or more employment contracts) that, in the Commission's opinion, demonstrates (fully or to a large extent) the following characteristics:
 - (i) an obligation on each employee who is undertaking or will undertake the training, and on the employee's employer, to take all reasonable steps to ensure that the employee is taught, and acquires, skills characteristic of or likely to be valuable to people engaged in a particular industry or 2 or more industries:
 - (ii) provision for most or all of those skills to be acquired by means of practical training in the course of the employee's employment, but with the possibility of the augmentation of the training by formal instruction received elsewhere:
 - (iii) provision for some formal recognition that the employee has acquired those skills if the employee in fact acquires them:
- (b) issue certificates of successful completion of programmes of industry training recognised under paragraph (a) (other than programmes in respect of which the qualifications authority has notified the Commission that it has registered skill standards and accepted arrangements for monitoring the delivery of training and assessing trainees):
- (c) establish and disestablish committees for the purposes of this section:
- (d) delegate to any such committee, unconditionally or subject to any conditions it thinks fit, any of its powers under this section.

Section 18 heading: amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 18: amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 18(a): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 18(b): amended, on 1 January 2003, by section 20 of the Industry Training Amendment Act 2002 (2002 No 51).

19 Consequential amendment

Amendment(s) incorporated in the Act(s).

Part 4
Industrial Training Levies Act 1978 and
Vocational Training Act 1982

[Repealed]

Part 4: repealed, on 1 January 2003, by section 18 of the Industry Training Amendment Act 2002 (2002 No 51).

20 Commencement of provisions deferred for 2 years

[Repealed]

Section 20: repealed, on 1 January 2003, by section 18 of the Industry Training Amendment Act 2002 (2002 No 51).

21 Repeals

[Repealed]

Section 21: repealed, on 1 January 2003, by section 18 of the Industry Training Amendment Act 2002 (2002 No 51).

22 Industry training boards dissolved

[Repealed]

Section 22: repealed, on 1 January 2003, by section 18 of the Industry Training Amendment Act 2002 (2002 No 51).

23 Employers may be levied to meet shortfall in assets of dissolved board

[Repealed]

Section 23: repealed, on 1 January 2003, by section 18 of the Industry Training Amendment Act 2002 (2002 No 51).

Part 5

Training levies

Part 5: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

24 Purpose

The purpose of this Part is to enable the making of Orders in Council imposing a training levy on the members of an industry, payable to an industry training organisation, if there is sufficient support for the imposition of that levy following a ballot of those members.

Section 24: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

25 Interpretation

For the purposes of this Part,—

ballot means a ballot under section 27(1)(a)

closing date means the date, specified in the ballot paper under section 36(b), by which ballot papers must be returned

levy group means the members of an industry described in a levy order, or proposed to be described in a levy order, who have to, or will have to, pay that levy or proposed levy

member of an industry means a person who employs persons who work in that industry or a self-employed person in that industry

qualifying member, in relation to a levy group, means a member who does not have a certificate of exemption under section 40

relevant industry means the industry described in the levy order, or proposed levy order.

Section 25: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

Imposition of levy

Heading: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

26 Governor-General may impose levy

- (1) The Governor-General may, on the recommendation of the Minister, by Order in Council, impose a levy on qualifying members of a levy group, payable to an industry training organisation.
- (2) The Minister must not recommend the making of an Order in Council under subsection (1) unless the Minister is satisfied of the matters in section 27.
- (3) Under a levy order under subsection (1), a levy may be payable to—
 - (a) 1 industry training organisation by all qualifying members of the industry that is covered by that organisation; or
 - (b) 1 industry training organisation by all qualifying members of a specific industry that is within the range of industries covered by that industry training organisation; or
 - (c) more than 1 industry training organisation, jointly, by all qualifying members of an industry that is covered by those industry training organisations.
- (4) A levy order is a legislative instrument and a disallowable instrument for the purposes of the Legislation Act 2012 and must be presented to the House of Representatives under section 41 of that Act.

Section 26: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 26(4): replaced, on 5 August 2013, by section 77(3) of the Legislation Act 2012 (2012 No 119).

27 Restrictions on making of levy orders

- (1) The Minister must not recommend the making of a levy order unless he or she is satisfied that—
 - (a) the industry training organisation to which the levy will be payable has, within the previous 12 months, balloted all known members of the levy group, in accordance with sections 31 to 38, in relation to a proposal that the levy should be imposed on those members; and

- (b) at least 60% of the ballot papers distributed were validly completed and returned to the independent returning officer conducting the ballot, before the closing date; and
 - (c) out of those ballot papers validly completed and returned,—
 - (i) more than 60% of the total supported the imposition of the levy; and
 - (ii) more than 60%, weighted according to the size of the industry member that returned the ballot paper (calculated at the date that the ballot closed and on the same basis as the levy is proposed to be charged, as set out in the ballot paper), supported the imposition of the levy; and
 - (d) the details specified in the order do not differ in any material way from those specified in the ballot paper; and
 - (e) the details specified in the order are acceptable to the Minister; and
 - (f) the industry training organisation has or will have in place adequate systems for accounting to qualifying members of the levy group for the expenditure of levy funds; and
 - (g) all other relevant matters known to the Minister have been properly considered.
- (2) When considering the matters in subsection (1), the Minister must consult with the Commission and may consult with any other persons the Minister considers appropriate.

Section 27: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

28 Matters to be specified in levy orders

Every levy order must specify the matters set out in Schedule 4.

Section 28: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

29 Purposes for which levy may be required

- (1) A levy order must specify the purposes for which levy funds are to be used.

- (2) A levy order may also specify any purpose or purposes for which no amount of levy may be used.
- (3) In specifying how levy funds are to be used, a levy order may specify 1 or more purposes that will benefit the levy group as a whole and that are related to meeting the costs (including infrastructure and administration costs) associated with—
 - (a) designing qualifications and setting skill standards for the relevant industry; and
 - (b) providing leadership in the relevant industry in matters relating to skill and training needs by identifying present and future skill needs and promoting training to meet those needs.
- (4) No levy order may specify a purpose for which levy funds may be used that is related to—
 - (a) meeting the costs of arranging delivery of industry training; or
 - (b) undertaking any commercial or trading activity; or
 - (c) any matter that directly benefits 1 or more individual members of the levy group, as opposed to generally benefiting the relevant industry as a whole.
- (5) Nothing in subsection (4)(b) prevents an industry training organisation from—
 - (a) using any part of a levy to publish or sell any educational, informative, or promotional material (whether or not at a profit); or
 - (b) investing any part of a levy pending its expenditure.

Section 29: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

30 Levy order may require provision of information

A levy order may require qualifying members of the levy group to provide information to the industry training organisation, or some other person or body, for the purpose of enabling or assisting the determination of the amount of levy payable.

Section 30: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

Ballots

Heading: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

31 Independent returning officer must conduct ballot

A ballot must be conducted by an independent returning officer appointed by the industry training organisation and approved by the Minister.

Section 31: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

32 Industry training organisation must identify potential members of levy group

- (1) An industry training organisation that proposes to impose a levy must take reasonable steps to ensure that it identifies all potential members of the levy group, including—
 - (a) obtaining from that organisation's records, and from records that may be available from other organisations, information that is able to be used to identify potential members; and
 - (b) giving adequate notice of the ballot in public newspapers and industry-specific publications, and inviting members of the relevant industry to register to receive information about the ballot and ballot papers.
- (2) After satisfying the requirements of subsection (1), the industry training organisation must provide to the independent returning officer who is administering the ballot a list of all potential members of the levy group of whom it is aware.

Section 32: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

33 Returning officer must notify potential members of levy group

- (1) The returning officer must give notice of the ballot to—
 - (a) every person named on the list of potential members of the levy group provided by the industry training organisation under section 32(2); and
 - (b) any other person whom the independent returning officer considers may be a member of the levy group.

- (2) The notice under subsection (1) must advise the person about the ballot and must state—
- (a) the description of the industry that is intended to be covered by the proposed levy order; and
 - (b) that the returning officer considers that the person is or may be a member of that industry; and
 - (c) that membership of the industry means that the person—
 - (i) is entitled to participate in the ballot; and
 - (ii) will be required to pay the levy if there is sufficient support for it in the ballot and the levy order is made; and
 - (d) that the person must notify the returning officer if the person disputes that he or she or it is a member of the industry intended to be covered by the proposed levy order (a **coverage dispute**); and
 - (e) the date by which that notification of a coverage dispute must be received.

Section 33: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

34 Commission resolves coverage disputes

If the returning officer is notified by a person under section 33(2)(d) that the person wishes to raise a coverage dispute, the returning officer must refer that issue to the Commission for determination in accordance with section 49.

Section 34: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

35 Population to be balloted

As soon as practicable after all coverage disputes have been finally determined (including any appeals under section 50(2)), the returning officer must send a ballot paper to each person in the levy group.

Section 35: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

36 Requirements of ballot papers

A ballot paper must state—

- (a) the address to which ballot papers must be returned; and
- (b) the date by which ballot papers must be returned; and
- (c) full information on the nature of the levy power being sought, including all the matters listed in Schedule 4.

Section 36: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

37 Returning officer must count votes

The returning officer must collect all validly completed ballot papers received by him or her at the closing date and calculate—

- (a) the proportion of the total number of ballot papers distributed by him or her under section 35 that have been validly completed and received by him or her at the closing date; and
- (b) the proportion of the validly completed ballot papers received by him or her at the closing date that are in favour of the proposal to impose the levy; and
- (c) the proportion of the validly completed ballot papers received by him or her at the closing date that are in favour of the proposal to impose the levy if the votes are weighted according to the size of the member of the industry that returned the ballot paper (calculated at the date that the ballot closed and on the same basis as the levy is proposed to be charged as set out in the ballot paper).

Section 37: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

38 Returning officer must keep ballot papers, etc

The returning officer must take all reasonable steps to ensure that all ballot papers, envelopes, lists, and other documents used in connection with a ballot conducted under this Part are preserved and kept for a period of 1 year after the completion of the ballot.

Section 38: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

Collection of levy

Heading: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

39 Levy is payable by qualifying members to industry training organisation

If a levy order is made, the levy specified in the order is payable by every qualifying member of the levy group to the industry training organisation or organisations named in the levy order.

Section 39: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

40 Certificate of exemption

- (1) The chief executive of the Commission may issue a certificate of exemption from payment of a levy to a member of the relevant industry who—
 - (a) was a member of the industry at the time of the ballot held in relation to that levy; and
 - (b) was, through no fault or neglect on that person's part, not included in the ballot.
- (2) The chief executive may revoke a certificate of exemption if—
 - (a) the person to whom it has been issued agrees; or
 - (b) it was issued in error.

Section 40: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

41 Method of collecting levy

- (1) An industry training organisation may collect levies directly from qualifying members of the levy group or by using a collection agent specified in the levy order in accordance with section 42.
- (2) An industry training organisation may recover levies due from any qualifying member of the levy group—
 - (a) by deducting the amount due from any amount the organisation owes that qualifying member; or
 - (b) as a debt due to the organisation in any court of competent jurisdiction.

Section 41: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

42 Levy order may provide for collection by agent

- (1) A levy order may specify persons, other than the persons who are primarily responsible for paying the levy, who must collect levy money due from qualifying members and pay it to the industry training organisation.
- (2) If a levy order specifies a person who must act as a collection agent under subsection (1), the levy order must also specify an amount from, or a percentage of, the levy money collected that the person may retain as a fee for providing the collection service.

Section 42: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

43 Collection of levy if person switches industry training organisation

- (1) A person who is a qualifying member of an industry must continue to pay any levy that is payable to the industry training organisation or organisations that cover members of that industry (the **original organisation**) even if the Commission grants an application by the person under section 10A for another industry training organisation (the **new organisation**) to manage the person's industry training.
- (2) If a person must pay a levy to its original organisation under subsection (1),—
 - (a) the person does not have to pay a levy to the new organisation as a result only of the new organisation managing the person's training; but
 - (b) if the person was obliged to pay a levy to the new organisation before the employer's application was granted, the employer must continue to pay the levy.

Section 43: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 43(1): amended, on 1 January 2004, by section 17 of the Industry Training Amendment Act 2002 (2002 No 51).

Duties of industry training organisations and others in relation to levies

Heading: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

44 Levy funds must be kept in separate bank accounts and used only for authorised purposes

- (1) An industry training organisation that receives a levy under a levy order must open 1 or more bank accounts for the purpose of the levy and must use the account or those accounts for the following purposes only:
 - (a) the deposit of amounts of levy paid or recovered; and
 - (b) making payments out of levy funds.
- (2) Only people expressly authorised by the organisation may operate the account or those accounts.
- (3) No money may be paid out of the account or those accounts except for a purpose authorised in the levy order.

Section 44: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

45 Duty to keep records

An industry training organisation that receives a levy must ensure that accurate and up-to-date records are kept of—

- (a) the names of all members of the levy group from whom the levy has been collected or recovered; and
- (b) the amount of the levy collected or recovered from those members; and
- (c) the names of all members of the levy group who are or may be liable to pay the levy but have not done so; and
- (d) the use to which the levy funds have been put.

Section 45: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

46 Duty to provide annual report

- (1) As soon as is practicable after the end of a financial year during which a levy has been paid to an industry training organisation under a levy order, the organisation—
 - (a) must prepare, in respect of that year, financial statements in accordance with generally accepted accounting practice; and
 - (b) must include in the financial statements required by paragraph (a) all the necessary information to explain—
 - (i) the balance of the levy fund; and

- (ii) the movements in the levy fund over the course of the year, including receipts of money collected and payments of money made under the levy order; and
 - (iii) the use of assets acquired or built up with or out of money received under the levy order.
- (2) The organisation must ensure that the financial statements prepared under subsection (1) are audited within 90 days of the end of that financial year.
- (3) Financial statements prepared under subsection (1) must be included in the organisation's annual report for that year.
- (4) An industry training organisation that is required by subsection (3) to include financial statements in its annual report must, as soon as that report has been completed, give a copy to the Minister, and the Minister must present a copy to the House of Representatives not later than 6 sitting days after receiving it.
- (5) Despite subsection (4), if an enactment other than this Act requires an industry training organisation to give a Minister a copy of its annual report and requires the Minister to present a copy to the House of Representatives, that organisation must, to the extent that the enactment and subsection (4) impose different requirements, comply with the enactment and not with subsection (4).
- (6) An industry training organisation that is required by subsection (3) to include financial statements in its annual report must take all reasonable steps to ensure that every person primarily liable for paying the levy that is reflected in those financial statements receives a copy of the annual report as soon as is reasonably practicable after the report has been completed.

Section 46: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

47 Duty to protect commercially sensitive information

Every person who receives commercially sensitive information for the purposes of carrying out a function or activity under this Part, or under a levy order, must take reasonable steps to protect that information.

Section 47: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

Disputes

Heading: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

48 Arbitration or mediation system must be established

- (1) An industry training organisation that receives a levy under a levy order must establish a method of arbitration or mediation in the case of disputes as to—
 - (a) whether a person was included in the ballot relating to that levy; and
 - (b) whether a person has paid the levy; and
 - (c) the amount of levy payable; and
 - (d) any other matter relating to the levy, except disputes about whether a person is within the levy group.
- (2) Details of the arbitration or mediation system must be specified in the levy order, including—
 - (a) the method of appointment of arbitrators or mediators; and
 - (b) the procedures to be followed by arbitrators or mediators; and
 - (c) the remuneration of arbitrators or mediators; and
 - (d) the payment of costs in relation to arbitration or mediation; and
 - (e) any other matters relating to the resolution of disputes.

Section 48: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

49 Disputes about coverage

- (1) If there is a dispute about whether a person is within a levy group, whether before or after the ballot, the dispute must be referred to the Commission, which must determine the matter.
- (2) The industry training organisation that is proposing to impose a levy or, if a levy order has been made, that is responsible for administering the levy must pay the reasonable costs of the Commission for determining disputes.

Section 49: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

50 Appeals to District Court

- (1) If a dispute is unresolved following arbitration or mediation in accordance with the method specified in the levy order, or if a party wishes to appeal a decision of an arbitrator or mediator, the dispute may be referred, or the decision may be appealed, to a District Court.
- (2) A determination by the Commission under section 49 may be appealed on grounds of procedural error only.
- (3) An appeal under subsection (2) may be made to a District Court by the person disputing membership of the levy group or by the industry training organisation that is proposing to impose, or responsible for administering, the levy.

Section 50: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

Confirmation and expiry of orders

Heading: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

51 Orders must be confirmed

- (1) Subsection (2) applies to a levy order that is made on or after 1 January and before 1 July in any year, and that—
 - (a) has not been revoked with effect on or before 1 July in the next year; and
 - (b) has not ceased, and will not cease, to have effect on or before 1 July in the next year by virtue of Part 3 of the Legislation Act 2012.
- (2) If subsection (1) applies to a levy order, the order is deemed to be revoked with the close of 30 June in that next year unless it has been confirmed by an Act of Parliament passed on or before that day.
- (3) Subsection (4) applies to a levy order that is made after 30 June and on or before 31 December in any year, and that—
 - (a) has not been revoked with effect on or before 1 January in the year after the next year; and
 - (b) has not ceased, and will not cease, to have effect on or before 1 January in the year after the next year by virtue of Part 3 of the Legislation Act 2012.

- (4) If subsection (3) applies to a levy order, the order is deemed to be revoked with the close of 31 December in the year after the year in which it was made unless it has been confirmed by an Act of Parliament passed on or before that day.
- (5) The Minister on whose recommendation a levy order was made must, by notice published in the *Gazette* at least 6 months before the day with the close of which the order may (under subsection (2) or subsection (4)) be deemed to have been revoked, indicate the Minister's intentions with regard to its continuing in force unless the levy order has already been—
 - (a) revoked; or
 - (b) disallowed under Part 3 of the Legislation Act 2012; or
 - (c) confirmed by an Act of Parliament.

Section 51: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 51(1)(b): amended, on 5 August 2013, by section 77(3) of the Legislation Act 2012 (2012 No 119).

Section 51(3)(b): amended, on 5 August 2013, by section 77(3) of the Legislation Act 2012 (2012 No 119).

Section 51(5)(b): amended, on 5 August 2013, by section 77(3) of the Legislation Act 2012 (2012 No 119).

52 Expiry of levy orders

- (1) A levy order expires 5 years after the day on which it was made unless it is sooner—
 - (a) revoked; or
 - (b) disallowed under Part 3 of the Legislation Act 2012.
- (2) A levy order is deemed to be revoked if the industry training organisation responsible for administering the levy ceases to be recognised.

Section 52: added, on 1 January 2003, by section 16 of the Industry Training Amendment Act 2002 (2002 No 51).

Section 52(1)(b): amended, on 5 August 2013, by section 77(3) of the Legislation Act 2012 (2012 No 119).

Schedule 1
Consequential repeals

s 14(2)

Apprenticeship Amendment Act 1985 (1985 No 4)

Apprenticeship Amendment Act 1991 (1991 No 23)

Education Amendment Act 1990 (1990 No 60)

Amendment(s) incorporated in the Act(s).

**Official Information Amendment Act 1987 (1987 No 8) (RS
Vol 21, p 579)**

Amendment(s) incorporated in the Act(s).

State Sector Act 1988 (1988 No 20)

Amendment(s) incorporated in the Act(s).

Trustee Amendment Act 1988 (1988 No 119)

Amendment(s) incorporated in the Act(s).

Schedule 2
Enactments repealed

s 21(1)

Education Amendment Act 1990 (1990 No 6)

Amendment(s) incorporated in the Act(s).

Industrial Training Levies Act 1978 (1978 No 82)

Industrial Training Levies Amendment Act 1988 (1988 No 25)

Industrial Training Levies Amendment Act 1989 (1989 No 90)

Labour Department Act Repeal Act 1989 (1989 No 82)

Amendment(s) incorporated in the Act(s).

National Provident Fund Restructuring Act 1990 (1990 No 126)

Amendment(s) incorporated in the Act(s).

Public Finance Act 1989 (1989 No 44)

Amendment(s) incorporated in the Act(s).

Vocational Training Act 1982 (1982 No 54)

Vocational Training Amendment Act 1985 (1985 No 45)

Vocational Training Amendment Act 1988 (1988 No 40)

Schedule 3

s 14(3)

Consequential revocations

Building Industry Technician Training Council Order 1969
(*Gazette* Vol I 1969, p 739)

Dental Technician Training Council Order 1973 (*Gazette* Vol I
1973, p 683)

**Dental Technician Training Council Order 1973, Amendment
No 1** (*Gazette* Vol I 1979, p 973)

**Dental Technician Training Council Order 1973, Amendment
No 2** (*Gazette* Vol III 1980, p 4113)

Schedule 4

ss 28, 36

Matters to be specified in levy orders

Schedule 4: added, on 1 January 2003, by section 19 of the Industry Training Amendment Act 2002 (2002 No 51).

To whom levy is payable and who pays

- 1 The name of the industry training organisation or organisations that will receive the levy.
- 2 A description of the industry the members of which will be primarily liable to pay the levy.

Amount of levy

- 3 The basis on which the amount of the levy will be calculated or ascertained.
- 4 How the size of a qualifying member of the levy group will be calculated for the purposes of calculating the levy payable by that member, such as—
 - (a) based on the number of employees of the member that work in the relevant industry; or
 - (b) based on the level of production of the member.
- 5 Whether the levy will be payable at a single rate or 2 or more different rates and, if it will be payable at different rates, the basis on which those different rates will apply.
- 6 How the rates of the levy will be notified.
- 7 Maximum and minimum amounts of levy payable (if any).
- 8 The amount of any additional charges, or the percentage increase in the levy payable, if amounts of levy otherwise payable are paid late or not paid at all (if applicable).

Uses to which levy may be put

- 9 Either—
 - (a) how the organisation is to spend the levy; or
 - (b) the means by which the organisation is to consult qualifying members of the levy group as to how the organisation is to spend it.
- 10 Whether the levy must be spent by the organisation or may be paid to, and spent by, branches or subsidiaries of the organisation.

Payment of levy

- 11 When and how the levy will be payable, including—
- (a) the period to which the levy will apply (the **levy period**); and
 - (b) how often levy payments will be required to be made; and
 - (c) the methods of payment of the levy that will be available to qualifying members of the levy group.
- 12 How the amount of the levy payable will be calculated when a person becomes a qualifying member of the levy group part way through a levy period.
- 13 How refunds of the levy will be calculated, and when they will be paid, if a qualifying member ceases to be a qualifying member of the levy group part way through a levy period.
- 14 What exemptions from payment of the levy will be available.
- 15 The circumstances (if any) in which, and the conditions subject to which, qualifying members of the levy group may be allowed extensions of time for the payment of any amount of levy.
- 16 The enforcement mechanisms that the industry training organisation receiving the levy may use to collect the levy.

Collection of levy by agent

- 17 The persons (if any), other than the industry members primarily responsible for paying the levy, who are responsible for collecting the levy in accordance with section 42.
- 18 The amount of, or percentage of, the levy money collected that a collection agent may retain as a fee for providing the collection service.

Miscellaneous

- 19 The records to be kept by—
- (a) the industry training organisation receiving the levy; and
 - (b) persons collecting the levy; and
 - (c) persons who are, or may be, liable to pay the levy.

- 20 The details of the method of arbitration or mediation to apply
 in the case of disputes, as required by section 48.
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Reprints notes

1 *General*

This is a reprint of the Industry Training Act 1992 that incorporates all the amendments to that Act as at the date of the last amendment to it.

2 *Legal status*

Reprints are presumed to correctly state, as at the date of the reprint, the law enacted by the principal enactment and by any amendments to that enactment. Section 18 of the Legislation Act 2012 provides that this reprint, published in electronic form, will have the status of an official version once issued by the Chief Parliamentary Counsel under section 17(1) of that Act.

3 *Editorial and format changes*

Editorial and format changes to reprints are made using the powers under sections 24 to 26 of the Legislation Act 2012. See also <http://www.pco.parliament.govt.nz/editorial-conventions/>.

4 *Amendments incorporated in this reprint*

Legislation Act 2012 (2012 No 119): section 77(3)
Education (Tertiary Reforms) Amendment Act 2007 (2007 No 106): sections 49–52
Insolvency Act 2006 (2006 No 55): section 445
Industry Training Amendment Act 2002 (2002 No 51)
Employment Relations Act 2000 (2000 No 24): section 240
Industry Training Amendment Act 1993 (1993 No 52)
